

Market Intelligence: What Semiconductor Companies Actually Signed

What their foundry, customer, and IP-license agreements reveal — from the public SEC exhibits. A benchmark, not a rating.

Every chip company signs the same three deals — with a **foundry** to make its chips, a **customer** to buy them, and a **licensor** for the IP underneath. The actual terms are filed as exhibits to SEC registration statements and annual reports: public, and almost never read. Here is what the market signed, organized by the term you'll negotiate.

Foundry & wafer-supply

- **Take-or-pay is standard — but it tracks leverage.** SkyWater's customer commits to "95% for the first Calendar Month ... 90% for the second" of its forecast; Everspin gave GlobalFoundries a "binding volume commitment." Yet Aquantia's buyer, Intel, committed to *nothing* — "forecasts ... do not constitute a ... commitment by Buyer."
- **Exclusivity can foreclose your second source — by contract, not cost.** Everspin is barred from licensing "any Foreground IP to any foundry" but GlobalFoundries; SkyWater's process "may be used ... only at the Facility."
- **The liability cap favors the fab.** SiTime's foundry caps its exposure at "\$5,000,000" with a three-year exit; GlobalFoundries caps at the customer's "TOTAL PURCHASE PRICE ... IN THE TWELVE (12) MONTHS" — while the buyer's commitment runs open-ended.

Customer & demand

- **A marquee logo can hide total leverage.** Cerebras's filed revenue is effectively one customer — G42, which is also an investor. And a marquee customer can still owe you nothing: Aquantia's buyer, Intel, "may terminate ... for convenience at any time," while "Aquantia may not," commits to no volume, and embeds "trade secrets of Intel" in the parts it buys.
- **Committed vs. cancellable revenue.** Mobileye's three largest customers — "35%, 19%, and 17% of revenue" — had no long-term written agreements.

IP & licensing

- **"Owned" and "licensed" are different assets.** MetaOptics licenses its entire technology base — "non-exclusive, ... revocable for cause" — from a Singapore state agency that also took equity and royalties; in Mobileye's most strategic collaboration, "Intel solely owns all Project IPR to Intel Core Technology"; SkyWater assigns its own improvements back to its former parent.

The ownership behind the counterparty

The controlling or mission-critical party is, far more often than not, **foreign or state-linked** — UAE (G42, Mubadala), Japan (Sanken, Bosch), the Singapore state (A*STAR), France (Soitec). That is exactly where **export-control and CFIUS** exposure sits — and where a purely financial view is blind.

These are the terms your own agreements will be measured against — by you before you sign, and by any investor or acquirer who reads them later. **We can run this same read on your contracts:** send one representative foundry, customer, or license agreement, under mutual NDA, and we'll benchmark it clause by clause against what the market actually signed.

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